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Tentative Ruling

Re: **Williams v. Welbe Health Sequoia Pace et al.**
Superior Court Case No. 25CECG01900

Hearing Date: September 2, 2026 (Dept. 502)

Motion: By Defendant Hongshik Han, M.D. for Summary Judgment

Tentative Ruling:

To continue the hearing on the motion for summary judgment to September 23, 2026 at 3:30 p.m. in Department 502. Defendant Hongshik Han, M.D. is to file the separate statement of material facts referenced in his moving papers by 5 p.m. Friday September 11, 2026.

Explanation:

On March 20, 2026, defendant Hongshik Han, M.D. ("Defendant") filed a motion for summary judgment ("MSJ").

Code of Civil Procedure section 437c, subdivision (b)(1), states "The supporting papers shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed." Defendant never filed a separate statement of material facts. However, both Defendant's moving papers and plaintiff Tia Williams' ("Plaintiff") opposition reference Defendant's separate statement of material facts. Accordingly, the motion for summary judgment is continued to September 23, 2026 at 3:30 p.m. and Defendant is ordered to file the separate statement of material facts referenced by his moving papers and Plaintiff's opposition by Friday September 11, 2026.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 8-31-26
(Judge's initials) (Date)

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Tentative Ruling

Re: **Yanez v. Sanchez**
Superior Court Case No. 25CECG01832

Hearing Date: September 2, 2026 (Dept. 501)

Motion: (1) Plaintiff's Motion for Default Interlocutory Judgment
(2) Defendant's Application for Order Granting Leave to Lodge Recorded Deed

Tentative Ruling:

To deny Plaintiff's request for default interlocutory judgment. To grant leave to amend the Complaint.

To find defendant's request to lodge recorded deed moot in light of the ruling on Plaintiff's request for default judgment.

Explanation:

Default Interlocutory Judgment

The complaint for partition of real property must set forth: 1) a description of the subject property, including both its legal description and its street address; 2) all interests the plaintiff has or claims in the property; 3) all interests of record or actually known to the plaintiff, and all persons plaintiff "reasonably believes will be materially affected by the action, whether the names of such persons are known or unknown to the plaintiff" (i.e., this includes "persons unknown" to be served by publication); 4) the estate as to which partition is sought and a prayer for partition of the interests therein; and 5) where the plaintiff seeks sale of the property, an allegation of the facts justifying such relief in ordinary and concise language. (Code Civ. Proc., § 872.230.)

The complaint alleges Plaintiff Juan Yanez and Defendant Rosa Sanchez are owners of real property located at 2873 W. Freeland St., in Caruthers, California. (Complaint, ¶ 9-10.) Title is held in joint tenancy. (Complaint, ¶ 10.) This is reflected in the grant deed attached to the complaint. (Complaint, ¶ 10, Exh. A.) With respect to other interests recorded on the property, the complaint alleges the "Plaintiff is aware of a deed of trust against the Property." (Complaint, ¶ 5.)

A title report is included as evidence in support of the default prove up, identifying two deeds of trust recorded against the property. (RJN, Ex. C.)

The complaint does not name either holder of the deeds of trust in the action. Where the mortgagee has a recorded interest it is required to be named as a party.

(Code Civ. Proc., § 872.230, subd. (c); 872.510.) As such, default judgment cannot be entered at this time.

Plaintiff is given leave to amend the complaint for the purpose of adding the parties with recorded interests as a defendant(s).

Defendant's Request for Leave to Lodge Recorded Deed

Defendant Rosa Sanchez seeks to lodge a recorded deed as evidence on the issue of ownership interests in the property to be partitioned. Her default in these proceedings was entered on June 11, 2025. The entry of default instantly cuts off a defendant's right to appear in the action or participate in the proceedings unless the default is set aside or judgment is entered (i.e., giving the defendant the right to appeal). (*Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155 Cal.App.3d 381, 385.)

However, not unlike an action for quiet title, the court in a partition action "shall upon adequate proof ascertain the state of title to the property." (Code Civ. Proc. § 872.620.)

In the context of a quiet title action, Code of Civil Procedure section 764.010 provides, "The court shall examine into and determine the plaintiff's title against the claims of all the defendants. The court shall not enter judgment by default but shall in all cases require evidence of plaintiff's title and hear such evidence as may be offered respecting the claims of any of the defendants, other than claims the validity of which is admitted by the plaintiff in the complaint. The court shall render judgment in accordance with the evidence and the law."

"Section 764.010 requires the trial court to 'examine into and determine the plaintiff's title,' to 'require evidence of plaintiff's title,' and to 'hear such evidence as may be offered respecting the claims of any of the defendants.'" (*Harbour Vista, LLC v. HSBC Mortg. Services Inc.* (2011) 201 Cal.App.4th 1496, 1506.) This obligates the court to hold an evidentiary hearing in open court before adjudicating title. (*Id.* at p. 1504.) Defaulted defendants are able to attend the hearing and participate in the adjudication of their title to real property. "If a defendant shows up before judgment is entered, the court must 'hear such evidence' as this party may offer about its claims, even if the defendant is in default. We can see no other way of interpreting this statute." (*Ibid.*)

Although there is no explicit statutory mandate to hear evidence, the court in a partition action is required to ascertain the state of title of the property according to proof. Defaulted defendant's limited appearance to present evidence of the state of title of the property at issue is consistent with the requirement to make a determination as to the title of the property upon adequate proof.

However, as the court is not making a determination as to the title of the property at this time, the court finds the request is moot.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

